

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/8/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
3	30-2026-01572895 Michael L. Carden, as Trustee of the Bellagan Trust dated November 14, 2012 vs. Beko	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 17), the Plaintiff's Opposition (ROA 24) and the Complaint (ROA 2). The Court OVERRULES the Defendant's Demurrer. The Court orders the Defendant to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
4	30-2026-01576947 Newport Bluffs LLC vs. Gaines	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 8) and the Complaint (ROA 2). The Court OVERRULES the Defendant's Demurrer. The Court orders the Defendant to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
7	30-2026-01543587	The Court has read and considered the Plaintiff's Declaration Re: Non-Compliance with Stipulation for Entry of Judgment and Request for Entry of

KLR Partners, LLC vs.
Peter Pan Novelty
Company

Judgment Thereon, together with all related filings submitted in support of the motion, as well as Defendant's Opposition (ROA 62) and all related filings.

The primary purpose of an unlawful detainer action is to determine the right to possession of real property. California Code of Civil Procedure section 1179(a) grants unlawful detainer proceedings statutory precedence and calendar preference over other civil actions. Once the issue of possession has been resolved, however, the statutory basis for expedited treatment no longer applies, and any remaining disputes are subject to the procedures governing ordinary civil actions. Additionally, California Civil Code section 1950.7 authorizes a commercial landlord to apply a tenant's security deposit toward unpaid rent, the cost of repairing damage beyond ordinary wear and tear, and other amounts permitted by statute upon termination of the tenancy.

The parties do not dispute that Defendants surrendered possession of the premises to Plaintiff or that Defendants timely paid the agreed sum of \$65,865.00 as required under the Stipulation for Entry of Judgment Upon Default (ROA 46). The sole dispute concerns whether Defendants returned the premises in the condition required by the Stipulation, namely, in "clean and undamaged condition, ordinary wear and tear expected."

The Court finds that the alleged failure to return the premises in the required condition does not constitute a material breach of the Stipulation warranting entry of judgment pursuant to its default provisions. The Court further finds that Defendants substantially complied with the material terms of the Stipulation, the principal purpose of which was to resolve the issue of possession of the property. (See ROA 46, § 11.) To the extent Plaintiff contends that Defendants caused damage to the premises beyond ordinary wear and tear, Plaintiff has adequate legal remedies available, including seeking recovery from the security deposit as authorized by Civil Code section 1950.7 or pursuing a separate civil action for any recoverable damages.

Accordingly, the Court DENIES Plaintiff's request for an order finding that Defendants failed to comply with the terms of the Stipulation and for entry of judgment thereon.

Because the remaining dispute concerning the condition of the premises is properly the subject of a separate civil action, the Court finds that there is no prevailing party with respect to the motion presently before the Court. Accordingly, neither party is entitled to recover attorney's fees incurred in bringing or opposing this motion.
